

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
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Record class: published panel opinion resolving jurisdiction and qualified immunity on separate tracks.

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. SYN-CA4-26-CV-4104 · Published opinion

Published Panel Opinion

Decided June 30, 2026.

Before Composite Jurist Alder, Composite Jurist Reed, and Composite Jurist March. Opinion by Composite Jurist Alder.

Officer Nolan Rusk appeals an order denying qualified immunity on Mara Ellison's Fourth Amendment excessive-force claim. The district court concluded that a jury could accept Ellison's description of a fourteen-second interval hidden by the officers' camera angles. It separately held that, under her version, one five-second drive-stun cycle and a forcible takedown violated clearly established law.

We divide the appeal at that same line. We lack interlocutory jurisdiction to decide whether the record can support Ellison's account or instead requires Rusk's asserted forearm strike and duty-belt reach. We dismiss that factual-sufficiency target.

We possess jurisdiction over the legal immunity ruling. Accepting the district court's supported plaintiff-favorable facts, the force was disproportionate to nonthreatening pulling during a protective seizure, and pre-incident circuit precedent gave fair warning. We therefore affirm the legal denial. We do not decide which physical account actually occurred.

I. Proceedings and appellate posture

Ellison filed suit under 42 U.S.C. § 1983 after a February 3, 2025 welfare check at Larkspur Court Apartments. Her amended complaint left one individual-capacity claim against Rusk. The legality of the initial seizure is not challenged. JA17–JA31.

After discovery, Rusk moved for summary judgment on objective reasonableness and qualified immunity. Ellison opposed, and the parties submitted paired fact statements, media materials, and a joint objections chart. JA187–JA241. On January 9, 2026, Judge Elaine Mercer denied the motion in a memorandum opinion that carefully separated historical sufficiency from legal consequences. JA242–JA253.

Rusk timely noticed an interlocutory appeal. JA261–JA275. His opening brief asks us to consider the synchronized recordings when setting the factual baseline and, independently, to hold that one contact-mode cycle was not clearly prohibited. Ellison seeks dismissal of the first request and affirmance of the second ruling. We heard argument on June 10.

The district court retained the unresolved merits because no final judgment entered. Our review extends only to matters encompassed by collateral-order jurisdiction. We state that limit before discussing force so that our legal holding cannot be mistaken for appellate factfinding.

II. The agreed sequence

At 19:42:11, Iris Ellison called 911 for assistance with her sister's medication and mental-health crisis. She reported no weapon, violence, threat, or criminal conduct. Officers Rusk and Priya Vega were dispatched at 19:47:36. Rusk arrived with his camera active at 19:52:14 and contacted Mara Ellison in the Building C exterior breezeway near 19:52:48. She was seated, distressed, and initially displayed empty hands. JA32–JA50, JA69–JA82.

Rusk grasped Ellison's left wrist at approximately 19:53:02. He concedes that a seizure had begun. At about 19:53:11, the audio records his direction to stop pulling and her statement that he was hurting her. Rusk applied a single drive-stun cycle from roughly 19:53:16 through 19:53:21 while forcing her down. The view cleared around 19:53:22; Vega moved to control the hands; and cuffing ended near 19:53:37. JA69–JA106.

There was no second activation or post-cuff strike. Medical records show a wrist abrasion, two superficial contact burns, shoulder strain, and no fracture. JA51–JA68. These fixed points define the encounter's timing and force. They do not resolve the disputed movement during the obstructed seconds.

III. The disputed interval and media limits

Ellison says she recoiled because the wrist hold hurt and pulled her arm away. She denies striking Rusk, touching or reaching toward his belt, trying to flee, or threatening anyone.

JA107–JA117. Rusk says she twisted, struck his forearm, and moved a hand toward equipment on his duty belt, creating an urgent need for control. JA118–JA130.

Vega observed body movement but did not reliably see the hands relative to the forearm or belt. JA141–JA150. From 19:53:08 through 19:53:22, close bodies and clothing block Rusk's camera, while the railing, Rusk, and the participants' positions impair Vega's angle. The audio contains commands, a pain complaint, and contact noises, but it does not identify which limb or object produced each sound. JA77–JA101, JA170–JA178.

The district court found neither account blatantly contradicted by the recordings. A reasonable jury could accept either. JA245–JA248. That ruling did not declare Ellison truthful, reject Rusk, or average their accounts into generic dangerous resistance. The court then assumed Ellison's version only to decide the legal immunity question. We preserve that distinction throughout this opinion.

IV. Collateral-order jurisdiction

A qualified-immunity denial is immediately appealable to the extent it resolves a legal issue separable from disputed merits facts. *Mitchell v. Forsyth*, 472 U.S. 511, 526–30 (1985). But an order deciding only that the evidence is sufficient to create a genuine historical dispute is not immediately reviewable. *Johnson v. Jones*, 515 U.S. 304, 313–20 (1995).

Our recent published decision in *Barricks v. Wright*, No. 25-1250, slip op. at 6–12 (4th Cir. Mar. 3, 2026), explains the practical result. We dismiss attempts to replace the facts identified by the district court with a defendant's preferred version, yet may decide whether the accepted facts violate clearly established law. This issue-by-issue approach preserves both trial factfinding and immunity from suit.

Scott v. Harris, 550 U.S. 372, 378–81 (2007), does not create jurisdiction to weigh ambiguous media. It permits a court to reject a version blatantly contradicted by an objective recording. *Tolan v. Cotton*, 572 U.S. 650, 656–60 (2014), correspondingly forbids drawing movant-favorable inferences from evidence that supports competing accounts. We independently classify Rusk's arguments under those principles.

V. The media contention is a factual-sufficiency target

Rusk concedes that no frame depicts the alleged strike or belt reach. He instead combines movement before the obstruction, his command, camera acceleration, unattributed sounds, and the parties' positions afterward. He says that mosaic establishes a rapidly developing physical struggle more dangerous than a simple pull.

The proposed conclusion requires an evidentiary inference. The district court already included pulling in Ellison's assumed version. What Rusk seeks to add is the degree and threatening meaning of the movement—the very historical matter on which the testimony conflicts. Authentication and synchronization cannot make hidden hand positions visible, and *Scott* does not permit us to infer the missing act merely because a genuine recording surrounds it.

We therefore lack interlocutory jurisdiction to review whether the record is sufficient for a jury to accept Ellison. That portion of the appeal is dismissed. We express no view about which witness is more persuasive, whether Rusk's reported soreness corroborates contact, or how a jury should interpret the playback. The dismissal does not end the appeal because Rusk separately accepts the district court's factual set for his legal qualified-immunity argument.

VI. The reviewable immunity question

For the balance of our analysis, we assume Ellison was unarmed and distressed; she recoiled and pulled from painful wrist control; she did not strike, grab, flee, reach toward Rusk's equipment, or present an immediate safety danger; and Rusk applied one five-second drive-stun cycle while forcing her to the breezeway floor. JA249. These assumptions are neither findings nor predictions of a trial result.

We review de novo whether those facts establish a constitutional violation and whether the right was clearly established on February 3, 2025. The questions are distinct. An officer may make a constitutionally mistaken judgment and still receive immunity if prior law did not give fair warning. Conversely, a factual dispute does not prevent a court from deciding the legal result that follows if the jury later accepts one supported version.

Rusk principally presses the clearly-established prong, although the parties brief both. We address the constitutional question first because the preexisting force cases are most intelligible when their governing proportionality rule is identified. Our analysis is confined to the facts above and does not establish a rule for encounters involving a strike, weapon access, flight, or an immediate threat.

VII. Objective reasonableness

Force used during a seizure is governed by the Fourth Amendment's objective-reasonableness standard. *Graham v. Connor*, 490 U.S. 386, 395–97 (1989). We consider the circumstances facing an officer, including suspected conduct, immediate threat, resistance, flight, force magnitude, and changes in the encounter. The inquiry allows split-second decisions but does not replace facts with hindsight favorable to either side.

The governmental interest here was modest. The call was protective, not criminal. No weapon, offense, threat, or escape preceded wrist control. Ellison's distress did not itself create danger. Two officers were present. Pulling against a lawful grip justified some effort to maintain control, but the assumptions exclude violence and any movement toward police equipment.

Resistance must be described rather than treated as a switch that authorizes escalating force. *Estate of Armstrong ex rel. Armstrong v. Village of Pinehurst*, 810 F.3d 892, 901–05 (4th Cir. 2016), explains that physical resistance supports force proportionate to the danger reasonably presented. On the assumed facts, Ellison's pulling complicated control but conveyed no immediate safety risk. That limited need did not justify intentional electrical pain during a forcible descent.

VIII. Force magnitude and changing circumstances

Drive-stun mode is distinct from probe deployment, and one cycle is less force than repeated activations. We nevertheless reject the suggestion that a first cycle is constitutionally neutral. The device intentionally caused pain for five continuous seconds and left two contact burns while Rusk was also forcing Ellison down. JA51–JA82. The wrist abrasion and shoulder strain further describe physical effect; the absence of fracture does not decide reasonableness.

Timing matters. Ellison was seated and empty-handed before control. The assumed pull followed Rusk's wrist grasp and her complaint of pain. The cycle began fourteen seconds after the grasp and ended as she descended. When the view cleared, Vega moved to hand control; Rusk did not reactivate the device. Those later restraints properly narrow the claim but do not retroactively justify the initial electrical escalation.

Communication, adjusted grip, repositioning, spacing, and Vega's assistance were realistic options on Ellison's account. The Constitution does not require the least intrusive measure, so our holding does not depend on proving one alternative would succeed. The options reinforce what the assumed threat factors already show: meaningful pain-producing force exceeded the need generated by non-dangerous pulling. We affirm the district court's constitutional conclusion on that defined factual set.

IX. Clearly established law and the relevant date

A right is clearly established when existing precedent makes the unlawfulness of the particular conduct apparent to every reasonable officer. Courts must not rely only on a general proposition that unreasonable force is forbidden. The inquiry must account for the type of force, the person's conduct, the governmental objective, and the danger facing officers.

The district court described one contact activation lasting five seconds, a compelled descent in protective custody, and an unarmed distressed subject who pulled against a wrist hold while making no attack, grab, escape attempt, or movement toward police gear and presenting no immediate safety risk. JA250. That formulation is sufficiently specific. It retains the physical pulling and does not define the right through a conclusion.

Notice must have existed when Rusk acted on February 3, 2025. *Barricks*, issued in March 2026, and *Zorn v. Linton*, 607 U.S. 568 (2026), issued later that month, govern aspects of our present analysis but cannot themselves supply historical notice. We look instead to published Fourth Circuit decisions available for years before the encounter. Read together, they established that intentional electrical or comparably injurious force must correspond to immediate danger, not nonthreatening resistance alone.

X. Armstrong supplied close prospective warning

Armstrong involved officers taking a mentally ill person into protective custody, physical resistance, and repeated use of a conducted-energy device. The Court held the electrical force disproportionate because the resistance did not create an immediate danger. 810 F.3d at 901–05. Although the officers received immunity for their 2011 conduct, the 2016 published decision expressly provided prospective guidance. *Id.* at 905–09.

Rusk identifies meaningful differences. Ellison was pulling during moving wrist control rather than holding a signpost, and he used one contact-mode cycle rather than repeated applications. Those features reduce magnitude and affect the control problem. They do not remove *Armstrong*'s central factual fit: a protective mental-health seizure, physical resistance, no immediate safety danger, and intentional electrical pain.

Qualified immunity does not require a prior case with the same activation count or body position when the closest circuit authority states the relationship with this clarity. By 2025, a reasonable officer could not read *Armstrong* as authorizing one full pain cycle merely because further cycles would be worse. Its prospective rule made danger, not the resistant label, the constitutional hinge. Under the facts we must assume, Rusk acted on the prohibited side of that hinge.

XI. The circuit's related force decisions reinforce notice

Smith v. Ray, 781 F.3d 95, 102–04 (4th Cir. 2015), denied immunity for escalation against a person whose modest movement did not make her dangerous. It teaches that movement must be assessed for what it reasonably signals, not counted as resistance in the abstract.

Meyers v. Baltimore County, 713 F.3d 723, 733–35 (4th Cir. 2013), evaluated taser uses across a changing sequence and withdrew justification when a continuing threat was absent. Its lesson is not that the first activation is always lawful; it is that justification must exist at the moment force is applied. Here the assumed sequence never includes the necessary danger.

Yates v. Terry, 817 F.3d 877, 884–88 (4th Cir. 2016), confirms fair notice concerning taser force against a nonthreatening subject. Its traffic-stop facts differ, but *Armstrong* independently supplies the protective-seizure and resistance setting.

These cases do more than restate *Graham*. They connect nonthreatening movement, electrical or injurious force, and moment-specific safety need. Taken with *Armstrong*'s prospective warning, they placed Rusk's assumed conduct beyond the zone of reasonable legal uncertainty.

XII. Zorn does not alter the result

Zorn is intervening Supreme Court authority, decided March 23, 2026. It cannot be, and we do not treat it as, a source of clearly established law on February 3, 2025. It instructs us now to demand a high degree of factual specificity and rejects reliance on materially more aggressive-force precedents to condemn a routine wristlock used after repeated warnings to move a resistant protester. Slip op. at 3–6.

This case differs from *Zorn* at the features driving both force and notice. Ellison's assumed pull was a response to painful restraint during a mental-health welfare seizure; she received electrical pain for five seconds plus a forcible takedown; and she had not struck, threatened, fled, or reached toward equipment. Rusk's conduct was not a routine wristlock following repeated protester warnings.

More importantly, Ellison does not analogize from materially harsher force in an unrelated setting. *Armstrong* itself involved protective custody, resistance, and a conducted-energy weapon. Its published prospective instruction addresses the danger-resistance distinction with the specificity *Zorn* demands. *Zorn* cautions against broad analogies; it does not erase a close pre-incident circuit precedent or convert every mechanical difference into immunity.

XIII. Disposition and preserved factual questions

We dismiss for lack of appellate jurisdiction the portion of Rusk's appeal challenging the evidentiary sufficiency of Ellison's account. We affirm the district court's legal denial of qualified immunity on its stated plaintiff-favorable facts. Each party shall bear its own costs.

Our disposition is deliberately conditional. We do not hold that Ellison actually refrained from striking Rusk or reaching toward his duty belt. We do not hold that those events occurred. We do not decide whether Rusk reasonably perceived an immediate threat under a materially different history. The obstructed interval remains for the district process and, if necessary, a factfinder.

If the factfinder accepts Rusk's account, the force analysis may differ; we express no view. If it accepts Ellison's account, today's legal ruling governs the immunity defense. The district court may manage the remaining claim, evidentiary issues, preserved native media, and trial proceedings consistently with this opinion.

The Clerk shall enter judgment reflecting both components rather than describing the appeal as simply affirmed or dismissed. The mandate shall issue in the ordinary course.

FACTUAL-SUFFICIENCY PORTION DISMISSED; LEGAL DENIAL OF QUALIFIED IMMUNITY AFFIRMED ON ASSUMED FACTS.